

with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is **GRANTED IN PART** and **DENIED IN PART**, as set forth further above.
2. To the extent granted above, Plaintiff shall serve **verified** further amended responses to the subject RFAs **within thirty (30) calendar days** of notice of entry of this order.
3. Any and all sanctions requests are DENIED. However, the Court reserves jurisdiction regarding the consideration and imposition of any and all further sanctions as the Court may deem just and necessary pending compliance with this order.
4. Moving party shall prepare the order after hearing.

15. 9:01 AM CASE NUMBER: C24-02351

CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.

*HEARING ON MOTION FOR DISCOVERY QUASH PLAINTIFF'S SUBPOENA TO BANK OF THE WEST
FILED BY: ZOUZOUNIS, THEODORE

TENTATIVE RULING:

Defendant Theodore Zouzounis (“Defendant Zouzounis”) filed a motion to quash on December 31, 2025 (the “Motion to Quash”). By the Motion to Quash, Defendant Zouzounis seeks to quash Plaintiff Sandra Hernandez’ (“Plaintiff”) subpoena to third party Bank of the West, or, alternatively, a protective order. The Motion to Quash was set for hearing on July 27, 2026.

Background

Plaintiff issued a subpoena for testimony and documents to Bank of the West on November 24, 2025 (“the Subpoena”). See Memorandum of Points and Authorities ISO Motion to Quash filed December 31, 2025 (“MPA”), p. 2. The Subpoena seeks the deposition of Bank of the West’s person most knowledgeable (“PMK”). See Declaration of Annalisa Zulueta ISO Motion to Quash filed December 31, 2025 (“Zulueta Decl.”), p. 2 and **Exhibit A** thereto. Additionally, it requests the following records (the “Bank Records Requests”):

PLEASE PRODUCE THE FOLLOWING DOCUMENTS

1. Any applications for Bank of the West presented by Theodore Zouzounis.
2. All accounts records maintained by Bank of the West during the years of 2015 through 2024 for Theodore Zouzounis.
3. All communications between Theodore Zouzounis and Bank of the West for the years 2015 to the end of 2024.

Id.

Defendant Zouzounis describes meet and confer efforts to resolve objections to the Subpoena which were unsuccessful. Zulueta Decl., ¶13 and **Exhibit B** thereto. Defendant Zouzounis subsequently filed the Motion to Quash on December 31, 2025.

The Proof of Service filed December 31, 2025 reflects service of the Motion to Quash on Plaintiff's counsel.

Plaintiff filed an opposition on July 14, 2026.

Analysis

The claims at issue in this case arise from an alleged loan made by Plaintiff to third parties Corbin Blume and Jaguar Energy ("Borrowers"). MPA, p. 2; see Complaint filed September 3, 2024, ¶11. Defendant Zouzounis is a named defendant and is alleged to have been involved with the corporate defendant, NFP Corporate Services (CA), Inc. ("NFP") in soliciting Plaintiff to make the loan. *Id.* at ¶18 *et seq.*

Plaintiff is seeking documents and testimony relating to Defendant Zouzounis' banking history and accounts at Bank of the West, based on records from a Wells Fargo account asserted to be related to Borrowers which it is contended evidences a payment in the amount of \$150,000 from Borrowers to Defendant Zouzounis on May 16, 2021. See MPA, p. 2.

Although the moving party makes reference to meet and confer correspondence regarding their "objections relating to the Subpoena," it appears no written objections to the Subpoena were served before the filing of the motion. See Zulueta Decl., ¶¶2-3. Rather, the moving party deponent seeks an order generally quashing or limiting the scope of the Subpoena. See MPA, p. 2.

Defendant Zouzounis contends the Subpoena is overbroad and infringes on his privacy rights.

The California Constitution guarantees a right to privacy. Cal. Const., art. I, § 1. Where the right to privacy is implicated, courts weigh the loss of privacy against the "legitimate and important countervailing interests disclosure serves." *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 ("*Williams*"). The personal financial records of parties and nonparties implicate the right to privacy. See *Cobb v. Superior Court* (1979) 99 Cal.App.3d 543, 550; *Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, 658.

The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. *Williams, supra*, 3 Cal.5th at 552. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. *Id.* A court must then balance these competing considerations. *Id.* Obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. *Id.*

The moving party has not demonstrated that whatever privacy rights he may have in the subject account(s) should be found to completely bar discovery regarding those account(s) and their use in connection with the alleged wrongful conduct.

Although the moving papers present some argument regarding the nature of the account(s) at issue, no declaration by Defendant Zouzounis or any other person with personal knowledge of those account(s) was offered in support of the motion.

Even assuming the subject account(s) are Defendant Zouzounis' personal bank accounts and that the Subpoena implicates his right of privacy as to his confidential financial affairs reflected in the bank records and information relating to his account(s), those concerns do not outweigh Plaintiff's important countervailing interests with respect to discovery regarding the financial transactions and matters at issue. This is especially true given the evidence of related transactions that has been conceded by Defendant Zouzounis himself. See MPA, p.2 (describing a "payment in the amount of \$150,000 from Blume to Defendant on May 16, 2021" shown in the subject bank records) (the "2021 Bank Transaction").

Nonetheless, while the Court is not inclined to quash the Subpoena in its entirety, the Court does conclude, in weighing the competing interests in light of the totality of the circumstances, that it is just and appropriate to limit the scope of the deposition and production of records.

The information put before the Court fails to establish good cause for production of records **to the extent specified** in the Subpoena. The Court notes the Subpoena sought an extraordinarily broad scope of Defendant Zouzounis' financial records going back to January 1, 2015, a date more than six years prior to the subject loan. A request of this breadth implicates the private financial records of Defendant Zouzounis and third parties completely unrelated to this matter. No distinction is made in the request between records or communications relating to the subject transaction versus other, unrelated matters.

According, the Motion to Quash is **DENIED IN PART** to the extent it seeks to quash the Subpoena in its entirety. The Motion to Quash is **GRANTED IN PART**, as follows:

1. Permitted Topics. The subject deposition shall be limited to the 2021 Bank Transaction and any and all other financial transactions reasonably related to or likely to lead to the discovery of admissible evidence regarding the claims at issue (the "Permitted Topics"). The Permitted Topics shall not include banking matters and transactions

primarily related to personal, family, or household purposes.

2. Discoverable Bank Records. Bank Records Requests No. 1 is hereby **QUASHED** and no responsive documents shall be produced by the bank custodian/PMK regarding this request. The bank custodian/PMK shall produce records responsive to **Bank Records Requests Nos. 2 and 3 ONLY** to the following extent: (a) any and all responsive records related to the 2021 Bank Transaction; and (b) any and all responsive records referencing the Borrowers or plaintiff Sandra Hernandez or any transaction involving them.

The Court has considered and denies the imposition of sanctions. The Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.410(d) (“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to quash a deposition notice, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”); see also Code Civ. Proc. § 2025.420(h).

Disposition

The Court finds and order as follows:

1. The Motion to Quash is **DENIED IN PART** and **GRANTED IN PART** as set forth further above.
2. Any and all sanction requests are **DENIED**.
3. Moving party to prepare the order after hearing.

16. 9:01 AM CASE NUMBER: C24-02427

CASE NAME: REPUBLIC FLOOR, LLC VS. KARIN FAAPOULI

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION TESTIMONY OF DEF SAMOAN CONGREGATIONAL CHURCH**

FILED BY: REPUBLIC FLOOR, LLC

TENTATIVE RULING:

Plaintiff Republic Floor, LLC (“Plaintiff”) filed a motion to compel further deposition testimony and production of documents by defendant Samoan Congregational Church of Jesus Christ in Daly City (“Church Defendant”) on March 2, 2026 (the “Motion to Compel Further Deposition”). The Motion to Compel Further Deposition was initially set for hearing on July 20, 2026. The motion was later reset for hearing on July 27, 2026.

Background

Plaintiff served its Amended Notice of Deposition of Person(s) Most Qualified (“PMQ”) on December 10, 2025. See Declaration of Sharon Mayer filed March 2, 2026 (“Mayer Decl.”), ¶19 and **Exhibit 3** thereto. This notice identified 41 requests for production (the “Requests”) and 64 topics of examination (“Topics”) as the original Notice. *Id.*